CFN: 20210860783 BOOK 32853 PAGE 1295
DATE:11/16/2021 03:33:26 PM
HARVEY RUVIN, CLERK OF COURT, MIA-DADE CTY

City of Miami

ORDER OF THE UNSAFE STRUCTURES PANEL

City of Miami
444 SW 2nd Avenue
Miami, FL 33130

FOR FULL INFORMATION CONCERNING THE DECISION ORDER, PLEASE READ THIS DOCUMENT IN ITS ENTIRETY

File Number: 16-02958 **Final Action: 11/12/2021**

Owner's Name: **ATELIER 28, LLC**
Owner's Mailing Address: **236 NE 28 STREET, MIAMI, FL 33137**
Case #: **BB2019014387**
RE: **236 NE 28 ST**
Folio Number: **01-3230-017-0260**
Legal Description: **LOT 30, BANKERS PARK, PLAT BOOK 2, PAGE 53, MIAMI-DADE COUNTY, FL**

The City of Miami's Unsafe Structures Panel Decision, at its meeting on NOVEMBER 12th, 2021 for **Structure "A" (3-STORY, CBS, APARTMENT BUILDING)**:

Structure 'A': Repair or Demolish Unsafe Structure within 180 days

PLANS: Building plans must be developed for all work and for all repairs or items needing to be completed or legalized. Plans shall be prepared by a Registered Architect or a Professional Engineer or as permitted by the Florida Building Code, as amended, and shall be Signed and Sealed, (or Stamped) by the Design Professional. When plans are required, they shall be submitted FIRST to the Unsafe Structures/Code Compliance Section for approval. Plans shall be prepared and submitted for approval to the City of Miami Building Department **within 30 days from today's date.**

All property surveys submitted to this Section for the purpose of obtaining permits shall be current, shall furthermore be Signed and Sealed and shall show all pertinent and required Elevations. (Note: A property survey is required for total demolition permits.)

BUILDING PERMITS:

Structure 'A': Permits shall be obtained within 90 days from today's date

Building Permits must be obtained after the construction plans have been approved by the Building Department for all Structures shown above and for all Disciplines requiring permits. Permits shall also be obtained for all required Trade sub-categories, as required by the Florida Building Code, Miami-Dade County Code and the City of Miami Code. The permits obtained shall cover all repairs or items needing to be completed and legalized.

IF ANY OF THE ABOVE STIPULATION(S) ARE NOT COMPLIED WITH, SAID STRUCTURE(S) SHALL BE DEMOLISHED BY THE CITY OF MIAMI AS SOON AS POSSIBLE.

The City of Miami Unsafe Structures Panel also ordered that, if compliance is not obtained

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within the time periods stipulated above, then the Building Official is further instructed to proceed in accordance with Chapter 10, Article VI of the City of Miami Code. There will be no further notices or communication from the City of Miami Unsafe Structures Panel regarding this case.

This document may be recorded by the Building Official with the Public Records of Miami-Dade County. This recording will constitute constructive notice to all concerned as well as any subsequent purchaser, that a decision has been rendered by the City of Miami Unsafe Structures Appeal Panel on the above referenced property in that the property in question is an Unsafe Structure and cannot be occupied until the Violation(s) are cured. Any costs associated with this case and this hearing shall be declared a special assessment pursuant to Chapter 10, Article VI of the City of Miami Code and Chapter 8-5 of the Miami-Dade County Code. Likewise, and to avoid additional hazards, the Electrical Service to the Unsafe Structure will be disconnected and will remain disconnected until the Violation(s) has been fully cured.

Permits for the structure(s) located at the above address must be obtained from the **City of Miami Building Department - 444 SW 2 Avenue, (4th floor), Miami, FL. 33130.**

The City of Miami Unsafe Structures Panel is Quasi-Judicial. The decision and specified compliance date(s) are final and binding. Any owner or interested party, as defined by Section 10-101 of the City Code aggrieved by a decision of the City of Miami Unsafe Structures Panel may seek judicial review of that decision in accordance with the Florida Rules of Appellate Procedure.

INTERESTED PARTIES:
Known Interested Parties for Case No.: BB2019014387

As of date (NOVEMBER 12th, 2021):

GULF BANK
3400 CORAL WAY
MIAMI, FL 33145

GULF BANK
C/O, R/A: MANNUEL GARCIA
1110 BRICKELL AV SUITE 901
MIAMI, FL 33131

ATELIER 28 LLC
C/O, R/A: AGI REGISTERED AGENTS, INC
1000 BRICKELL AV, SUITE 300
MIAMI, FL 33131

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At a meeting of the Unsafe Structure Panel on 11/12/2021, a motion was made by Panel Member Kouchalakos, seconded by Panel Member Bared, that this Order be APPROVED, passed.

Moved By: _____

Panel Member Kouchalakos

Seconded By: _____

Panel Member Bared

Chair, Unsafe Structure Panel _____ **Date** 11/12/2021

Rafael Rodriguez

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